

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & CO., *Complainant*

v.

COSCO SHIPPING LINES (NORTH AMERICA) INC.,
Respondent.

DOCKET NO. 24-01

Served: November 15, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER TO CORRECT FILINGS AND ORDER ON OUTSTANDING MOTION

On November 9 and 12, 2024, the Complainant, Visual Comfort & Co. (“VCC”) filed the Confidential-Restricted versions of its Brief, Proposed Findings of Fact (“PFF”), and Appendix in the above-captioned matter. While VCC’s brief identifies by shading words and phrases it identifies as “confidential,” no motion for confidentiality has been filed, and it does not appear that the Appendix has been similarly shaded or otherwise identified as containing “a trade secret or confidential research, development, or commercial information” as set forth in 46 C.F.R. § 502.141(j)(1). Initial Order at 5. The parties’ Protective Order may cover discovery exchanged between them but does not cover material submitted into the record. The parties’ Protective Order does not relieve them from the obligation to justify confidential treatment.

In addition to not providing identifying markings in the Appendix, VCC did not provide a “Confidential Bates Table” as described and illustrated in the Initial Order. *Id.* at 6. Without the markings or the table, it is impossible to know for what information VCC seeks confidentiality. The following must be reviewed and incorporated in the resubmissions. Both parties are cautioned to not over-designate information as confidential. The public versions of the brief and the appendix must only redact those portions identified in the confidential versions, and the two versions must contain identical page numbers. As stated in the Initial Order:

Confidential Material

19. *Stipulation* – The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.
20. *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify

each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

21. *Depositions* – Parties may not mark entire depositions as confidential. Parties should ask questions that may require confidential responses together, typically at the end of the deposition. Alternatively, parties may mark as confidential selected statements in a deposition prior to filing the deposition as an exhibit. Requests for confidential treatment of entire depositions should not be made and may be summarily rejected.
22. *Filing* – Parties should file two versions of confidential filings marked on the cover page as the “confidential version” and the “public version.” 46 C.F.R. § 502.5. Parties may label all pages as “confidential” or “public” in the header or footer. Improperly marked filings may be rejected.
23. *Marking confidential material* – In the confidential version, the confidential information must be conspicuously and clearly marked on each page, for example by outlining, highlighting, boxes, or braces. The public version must clearly indicate any omissions, for example with blackout or braces. *Pagination and depiction of text on each page must be identical to that of the confidential version.* For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.” Only confidential numbers or words should be marked as confidential in the confidential version and thus redacted in the public version, not entire sentences. Improperly marked filings may be rejected.
24. *Exhibits* – Confidential information in exhibits should be marked as described above. If marking within the text is not feasible, the motion seeking confidential treatment must indicate why the material could not be so marked. If justified, individual pages may be replaced in the public version with a page indicating that confidential material was excluded. Entire exhibits should not be excluded, only those pages containing confidential material.
25. *Personal information* – Personally identifiable information such as social security numbers, birth dates, and financial account numbers must be redacted pursuant to Commission Rule 13. 46 C.F.R. § 502.13.
26. *Confidential Request Table* – It is recommended that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table may include: (1) the bates range for confidential document requests, (2) the document’s description, (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material marked in both the confidential and public versions, and (4) the legal basis for the confidentiality request. If a particular bates range in an appendix does not include any confidential information, it does not

need to be listed in the confidential materials list. If a supplemental appendix is later submitted, it is recommended that a new comprehensive confidential bates list be submitted, which includes the previous list and any additional bates ranges for which confidential material has been requested (resulting in one confidential list for Complainants and one confidential list for Respondents, encompassing all confidentiality requests).

Example: [Party Name] Appendix - Confidential Bates Table

<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
CX 12-13	Depo. Transcript of [Name]	Material indicated	Current pricing data
RX 8-9	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms

Initial Order at 5-6.

Accordingly, VCC must resubmit a confidential version of its PFF with appropriate shading if it wishes to exclude any information that meets the definition of “confidential” from public view, and resubmit the Confidential Appendix with markings indicating what it seeks to exclude in the public version of the Appendix, and including a Confidential Bates Table.¹ VCC must also file a motion justifying confidential treatment of those items for which it seeks confidential treatment. In addition, VCC must file public versions of its Brief, PFF, and Appendix. The parties are instructed to review the requirements for filing confidential material and ensure that remaining briefing follows all requirements.

Regarding VCC’s outstanding motion to compel, the parties filed a final Joint Status Report (“JSR”) on August 30, 2024, stating that they “[had] made substantial progress since August 20, 2024.” JSR at 1. Both had run searches “based on the search terms proposed by Complainant [and] [t]hese searches were completed on August 29, 2024....” *Id.* The parties proposed an amended schedule to complete discovery and to file their respective briefs, and that proposed schedule was adopted. *See* Amended Scheduling Order dated September 5, 2024.

On October 2, 2024, 16 days before the end of discovery, COSCO filed its third dispositive motion in this proceeding, and second motion to dismiss. On October 8, 2024, the undersigned issued an Order Denying Respondent’s Second Motion to Dismiss (“Order”). The Order recounted the procedural history of COSCO’s three dispositive motions and two motions to compel and stated that “[t]o the extent that discovery issues have not already been adjudicated

¹ To avoid altering the pagination of the Confidential Appendix, the Confidential Bates Table may be submitted as a separate document. No additions other than shading or brackets may be added to the PFF or Appendix, and the pagination and content must remain the same as that originally filed.

by the two previous orders on motions to compel, the parties may raise objections and requests to exclude or obtain evidence in their briefs, citing to appropriate authority.” Order at 4.

Shortly after COSCO acknowledged email receipt of the Order on October 8, 2024, COSCO filed Respondent’s Notice of Intent to Enforce Subpoenas Against Third Party R.I.M. Logistics, LTD (“Notice”). The subpoenas “were served on R.I.M. on May 28, 2024....” Notice at 1. COSCO seeks enforcement in federal district court. *Id.*

A Second Motion to Compel² filed by VCC on October 16, 2024, two days before the close of discovery, alleges that COSCO has withheld documents, failed to search relevant email addresses for responsive documents, and failed to provide a knowledgeable corporate witness to testify on certain subjects. Second Motion to Compel at 2. VCC concurrently filed a Motion for Enlargement of Page Limits because the Second Motion to Compel exceeded the 10-page limit.

COSCO responded to and opposed VCC’s Second Motion to Compel on October 23, 2024; it did not oppose the Motion for Enlargement of Page Limits. COSCO asserts that the witness it produced was knowledgeable regarding and did address all topics VCC presented, and it asserted that it searched the email address identified by the witness and produced all documents relevant to VCC’s requests. Respondent’s Response to Complainant’s Second Motion to Compel Discovery and Motion to Extend Page Limits at 1-9.

Because it was not opposed, VCC’s Motion for Enlargement of Page Limits is **GRANTED**. For the sake of judicial efficiency, as addressed in the Order, and due to the timing of VCC’s Second Motion to Compel, the motion will be decided in the Initial Decision.

It is **ORDERED** that by November 25, 2024, Complainant VCC submit a motion requesting and supporting confidential treatment of designated items. It is

FURTHER ORDERED that Complainant VCC resubmit the confidential version of its Appendix with appropriate markings and Confidential Bates Table as set forth above and in the Initial Order, by November 25, 2024. It is

FURTHER ORDERED that Complainant VCC resubmit the confidential version of its Proposed Findings of Fact with appropriate markings if it seeks confidential treatment. It is

FURTHER ORDERED that Complainant VCC file public versions of its Initial Brief, Proposed Findings of Fact, and Appendix, by November 25, 2024. It is

FURTHER ORDERED that the parties review the Initial Order requirements for filing confidential documents and ensure that remaining briefing comply with the requirements.



Linda S. Harris Crovella
Administrative Law Judge

² VCC filed Complainant’s Second Motion to Compel as a “Confidential-Restricted” version only with no motion seeking confidential treatment, and no public version was submitted.